



REQUEST FOR PROPOSAL

RFP No. 22-10P

TELECOMMUNICATIONS SERVICE VOICE/INTERNET

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Purchasing Department
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TABLE OF CONTENTS

Legal Notice.....	3
Schedule of Events	4
Section 1 - Instructions to Respondents	5
Section 2 - General Terms and Conditions.....	7
Section 3 - Special Terms and Conditions	13
Section 4 - Scope of Services.....	14
Section 5 - Submittal Preparation	16
Section 6 - Evaluation of Submittals	19

ATTACHMENTS

Attachment A – Submittal Acknowledgement	20
Attachment B – Vendor Information	21
Attachment C – Acknowledgement of Addenda	22
Attachment D – Respondent’s Statement of Qualification	23
Attachment E – Conflict of Interest Disclosure	24
Attachment F – Certification Regarding Debarment, Suspension and other Responsibility Matters	25
Attachment G – Drug Free Workplace Certification	27
Attachment H – Non-Disclosure Agreement for Confidential Materials	28
Attachment I – Sworn Statement Pursuant to Section 287.133(3) Public Entity Crime	31
Attachment J – Sworn Statement Pursuant to Section 1012.465, The Jessica Lunsford Act	32
Attachment K – Application for Certification.....	33
Attachment L – References	34
Attachment M – E-Rate Supplemental Terms & Conditions	36
Attachment N – Proposal Price Sheet.....	40

LEGAL NOTICE

Flagler County School Board
RFP No. 22-10P
Telecommunications Service Voice/Internet

Flagler County School Board is requesting proposals under the E-Rate categories of Telecommunications Services, Voice and Internet. This RFP is for existing and new telecommunications services for both voice and data.

Sealed submittals will be accepted until Monday, February 14, 2022 at 12:00 p.m. Submittals must be received by the Purchasing Department, Flagler County School Board, 1769 East Moody Blvd., Bldg. #2, Second Floor, Bunnell, FL 32110. Submittals received after this deadline will not be accepted.

RFP documents can be obtained via the Flagler Schools website at www.flaglerschools.com/departments/finance/purchasing.

SCHEDULE OF EVENTS

Date	Description
January 19, 2022	Legal Advertisement
January 28, 2022	Question Deadline - due by 4:00pm
February 4, 2022	Addendum Released (if necessary)
February 14, 2022	Submittal Due Date - Due by 12:00pm Deliver to: Flagler County Schools Attn: Purchasing Department 1769 E. Moody Blvd, Bldg 2 - Second Floor Bunnell, FL 32110
February 17, 2022	Selection Committee Meeting Location: Flagler County Schools 1769 E. Moody Blvd, Bldg. 2 Bunnell, FL 32110 Time: TBD
February 19, 2022	Notice of Intended Decision
March 22, 2022	Board Approval

SECTION 1 – INSTRUCTIONS TO RESPONDENTS

Solicitation Documents

The District utilizes OpenGov Procurement for the posting and distribution of all solicitations. Documents may be obtained at <https://secure.procurenow.com/portal/flaglerschools>. The District is not responsible for the accuracy of other means of distribution. Alteration of the content of this document shall result in disqualification.

Designated Purchasing Representative

Kris Collora, Coordinator of Purchasing for Flagler Schools, is the designated Purchasing Representative and will be responsible for facilitating the entire solicitation process. The Purchasing Representative shall be the sole point of contact for all Respondents.

Cone of Silence

Selection committee members, school board members, and school board personnel (except the designated Purchasing Representative) are **not to be contacted** prior to the School Board's decision to approve or reject the final recommendation presented to it by the Superintendent or his designee. At the discretion of Flagler County Schools, failure to comply with this requirement will be grounds for disqualification.

Specifically, this **No-Contact Period** shall commence upon issuance of the Request for Proposal and continue through and include the date the Flagler County School Board makes its determination to approve or reject the final recommendations.

Failure to meet any of these requirements may disqualify a Respondent from consideration.

Questions and Request for Clarifications

Respondents shall submit any questions and/or requests for clarifications via email to: purchasing@flaglerschools.com by the due date and time as indicated in the Schedule of Events.

Questions received after the deadline will not be considered. Inquiries must reference the RFP number in the subject line of the e-mail. Those interpretations which may affect the eventual outcome of this solicitation will be posted on the Flagler County Schools Purchasing web page for all prospective Respondents to view. Only the interpretation or correction so given by the Purchasing Representative, in writing, shall be binding and prospective Respondents are advised that no other source is authorized to give information concerning, or to explain or interpret the RFP and the selection process. All such interpretations and supplemental instructions will be in the form of written Addenda to the RFP.

Right of Amendment of RFP

Flagler County School Board reserves the right to amend this RFP via Addenda for any reason prior to the Due Date, and submittal by Respondent shall be deemed to acknowledge all amendments which may have been issued.

Submittal Instructions

All submittals must be received by the due date and time as indicated. Respondent will be responsible for its timely delivery to Flagler County Schools, Purchasing Department, 1769 E. Moody Blvd., Bldg. #2, Second Floor - Finance, Bunnell, FL 32110. It is the Respondent's sole responsibility to ensure that its submittal is delivered at the proper time and to the proper place of the submittal opening. Submittals which for any reason are not so delivered will not be considered and will be returned to Respondent at the Respondent's expense.

Submittals must be sealed and clearly labeled on the outside of the package using the label provided in this RFP. Once accepted, all original submittals and any copies of submittals become the sole property of the School Board and may be retained by the School Board or disposed of in any manner the School Board deems appropriate. All submittals shall be signed by an officer or employee having authority to legally bind Respondent. Respondents should become familiar with any local conditions which may, in any manner, affect the services required. Respondent is required to carefully examine the RFP terms and to become thoroughly familiar with any and all conditions and requirements that may in any manner affect the work to be performed under the resulting contract. No additional allowance will be made due to lack of

knowledge of these conditions. Submittals not conforming to the instructions provided herein may be subject to disqualification at the sole discretion of the School Board. Any submittal may be withdrawn prior to the date and time the submittals are due. Any submittal not withdrawn will constitute an irrevocable offer, for a period of 90 days, to provide the School Board with the services specified in the submittal.

Submittal Preparation Cost

The costs of developing submittals are entirely the responsibility of Respondent and shall not be charged in any manner to FCSB. This includes, but is not limited to, the direct cost of personnel assigned to prepare Respondent's response to the RFP and any out-of-pocket expenses (including, but not limited to, travel, accommodation, supplies) incurred by Respondent in preparing the response to the RFP.

Withdrawal and Resubmission/Modification of Submittals:

Respondent may withdraw its submittal prior to RFP Submittal due date and time specified the schedule this RFP by submitting an email notification of its withdrawal by Respondent or agent, sent to the Purchasing Representative stated in Section 1. Thereafter, Respondent may submit a new submittal prior to such submission time specified in Schedule of Events. Modification offered in any other manner, oral or written, will not be considered. Submittals cannot be changed or withdrawn after the designated time for receipt.

Right of Withdrawal of RFP

Flagler County School Board reserves the right to withdraw this RFP for any reason prior to the execution of an Agreement.

Review and Evaluation

The review and evaluation of the Submittals shall be conducted by a Selection Committee and shall be conducted in accordance with the criteria as set forth in this Request for Proposal (RFP). All decisions of the Flagler County School Board shall be considered final.

Posting of Scoring / Recommendation

RFP scoring tabulations with recommended awards will be posted for review on the Flagler County Schools website at www.FlaglerSchools.com. Failure to file a protest within the time prescribed in Section 120.57(3) b, Florida Statutes, shall constitute a waiver of proceedings under Chapter 120, Florida Statutes.

Debriefing

A debriefing may be held after contract award at the request of any Respondent for the purpose of receiving specific information concerning the evaluation. The discussion will be based primarily on the technical and business and cost evaluations of Respondent's submittal. A debriefing is not the forum to challenge the RFP specifications or requirements.

Complete Document and Agreement

This document, its issued addenda, and any subsequent Contract, Agreement and addenda, shall be construed as the complete and binding documents, and Respondent/s shall not rely on any verbal representations from FCSB or its representatives as taking precedence over the written documents as outlined above.

SECTION 2 – GENERAL TERMS AND CONDITIONS

1. Agreement:

A contract or agreement will be released, after award, for any work to be performed as a result of this RFP. This RFP, the respondent's submittal, negotiated terms, and the contract will constitute the complete agreement between Respondent and FCSB.

2. Non-Exclusive Agreement:

This RFP does not establish an exclusive arrangement between the School Board and the Respondent. The School Board reserves the right to utilize any other contract, including but not limited to any contract awarded by the State of Florida, another city or county government agency, school board, community college/state university system, cooperative bid agreement, or to directly negotiate/purchase per School Board policy and/or State Board Rule 6A-1.012. The district also reserves the right to bid separately any item(s) and/or service(s) covered under this contract at any time during this contract term.

3. Assignment of Contract and/or Payment:

This contract or agreement is personal to the parties herein and may not be assigned, in whole or in part, by Respondent without prior written consent of FCSB. Respondent herein shall not assign payments under this contract or agreement without the prior written consent of FCSB.

4. State Term Contracts and Agreements:

Before purchasing nonacademic commodities and contractual services, the School Board reviews the purchasing agreements and state term contracts available under s. 287.056 to determine whether it is in the School Board's economic advantage to use the agreements and contracts. As such, all purchasing agreements and state term contracts available under s. 287.056 have been reviewed. In addition, the School Board may use the cooperative state purchasing programs managed through the regional consortium service organizations pursuant to their authority under s. 1001.451(3).

5. Other Governmental Agencies:

All Respondents awarded contracts from this RFP may, upon mutual agreement, permit any school board, city, municipality or other government agency to participate in the contract under the same prices, terms and conditions, if agreed to by both parties.

6. Suspension of Work:

FCSB may in its sole discretion suspend any or all activities under the Contract or purchase order, at any time, when in the best interests of FCSB to do so. FCSB shall provide the Respondent written notice outlining the particulars of the suspension. Examples of the reason for suspension include, but are not limited to, budgetary constraints, declaration of emergency, or other such circumstances. After receiving a suspension notice, the Respondent shall comply with the notice and shall not accept any purchase orders. Within ninety days, or any longer period agreed to by the Respondent, FCSB shall either (1) issue a notice authorizing resumption of work, at which time activity shall resume, or (2) terminate the Contract or purchase order. Suspension of work shall not entitle the Contractor any additional compensation.

7. Termination for Convenience:

FCSB, by written notice to Respondent, may terminate the Contract in whole or in part when FCSB determines in its sole discretion that it is in its best interest to do so. Respondent shall not furnish any product after it receives the notice of termination, except as necessary to complete the continued portion of the Contract, if any. Respondent shall not be entitled to recover any cancellation charges or lost profits.

8. Termination for Cause:

FCSB may terminate the Contract if Respondent fails to: (1) deliver the product within the time specified in the Contract or any extension, (2) maintain adequate progress, thus endangering performance of the Contract, (3) honor any term of the Contract, or (4) abide by any statutory, regulatory, or licensing requirement. Rule 60A-1.006(3), F.A.C.,

governs the procedure and consequences of default. Respondent shall continue work on any work not terminated. Except for defaults of subcontractors at any tier, Respondent shall not be liable for any excess costs if the failure to perform the Contract arises from events completely beyond the control, and without the fault or negligence, of Respondent. If the failure to perform is caused by the default of a subcontractor at any tier, and if the cause of the default is completely beyond the control of both Respondent and the subcontractor, and without the fault or negligence of either, Respondent shall not be liable for any excess costs for failure to perform, unless the subcontracted products were obtainable from other sources in sufficient time for Respondent to meet the required delivery schedule. If, after termination, it is determined that Respondent was not in default, or that the default was excusable, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of FCSB. The rights and remedies of FCSB in this clause are in addition to any other rights and remedies provided by law or under the Contract.

9. Cancellation of Award/Termination:

In the event any of the provisions of this solicitation are violated by Respondent(s), Purchasing Services will give written notice to Respondent(s) stating the deficiencies and unless the deficiencies are corrected within ten (10) business days, recommendation will be made to FCSB for immediate cancellation. Upon cancellation hereunder, FCSB may pursue any and all legal remedies as provided herein and by law.

The awarded contractor will have the option to terminate the contract upon written notice to the Purchasing Representative. Such notice must be received at least 90 days prior to the effective date of termination.

Cancellation of contract by the awarded contractor may result in removal from Respondents/Respondent list for a period of three years.

10. Conflict of Interest:

All Respondents must disclose the name of any officer, director, or agent who is also an employee of FCSB. All Respondents must disclose the name of any School Board employee who owns, directly or indirectly, any interest in the Respondents' business or any of its branches.

11. Default:

In the event that the awarded Respondent(s) should breach this contract, FCSB reserves the right to seek remedies in law and/or in equity.

12. Drug-Free Workplace:

If applicable, Respondent shall provide a statement concerning its status as a Drug-Free Work Place. Submittals received which are equal with respect to price, quality, and service and that have provided proper certification that a business has implemented a drug-free workplace program, shall be given preference in the award process.

13. False or Misleading Statements:

Submittals which contain false or misleading statements, or which provide references which do not support an attribute or condition claimed by Respondent may be rejected. If in the opinion of FCSB such information was intended to mislead FCSB in its evaluation of the submittal, and the attribute, condition, or capability is a requirement of this RFP, it will be the basis for rejection of the submittal.

14. Funding Out / Termination / Cancellation:

Section 237.161, Florida Statutes, et seq., prohibit school boards from creating obligations in anticipation of budgeted revenues from one fiscal year to another without year-to-year extension provisions in the agreements.

It is necessary that fiscal funding out provisions be included in all submittals in which the terms are for periods longer than one (1) year. Therefore, the following "Funding Out" provision is an integral part of this solicitation and must be agreed to by all Respondents:

The School Board may, during the contract period, terminate or discontinue the services covered in this submittal at

the end of the School Board's then current fiscal year upon ninety (90) days' prior written notice to the successful Respondent.

Such prior written notice will state the following: "The lack of appropriated funds is the reason for termination. This includes an agreement not to replace the services being terminated with services similar to those covered in this submittal from another contractor in the succeeding funding period. This written notification will thereafter release the School Board of all further obligations in anyway related to the services covered herein."

The Funding Out statement must be included as part of any agreement. No agreement will be considered that does not include this provision for "funding out."

15. Indemnification / Hold Harmless Agreement:

This General Condition is NOT subject to negotiation and any bid that fails to accept these conditions will be rejected as "non-responsive", unless Respondent is entitled to sovereign immunity by action of the Florida Legislature. Each party agrees to be fully responsible for its acts of negligence, or its agents' acts of negligence when acting within the scope of their employment and agrees to be liable for any damages resulting from said negligence to the extent allowable pursuant to Section 768.28, Florida Statutes. Nothing herein is intended to serve as a waiver of sovereign immunity by the School Board. Nothing herein shall be construed as consent by the School Board to be sued by third parties in any matter arising out of any contract. Respondent shall hold harmless and defend the School Board and its agents and employees from all suits and actions, including attorney's fees and all costs of litigation and judgments of any name and description arising out of or incidental to the performance of this contract or work performed thereunder. This provision shall also pertain to any claims brought against the School Board by an employee of the named Respondent, any Subcontractor, or anyone directly or indirectly employed by any of them. The Respondent's obligation under this provision shall not be limited in any way by the agreed upon contract price as shown in this Contract or the Respondent's limit of, or lack of, sufficient insurance protection.

16. Legal Requirements:

It shall be the responsibility of Respondent to be knowledgeable of all federal, state, county and local laws, ordinances, rules and regulations that in any manner affect the items covered herein which may apply. Lack of knowledge by Respondent(s) will in no way be a cause for relief from responsibility. Respondents doing business with FCSB are prohibited from discriminating against any employee, applicant, or client because of race, creed, color, national origin, sex, or age with regard to, but not limited to, the following: employment practices, rates of pay or other compensation methods, and training selection.

17. Intellectual Property:

Respondent, without exception, shall indemnify and save harmless the School Board of Flagler County, Florida, Flagler County Schools, and its employees from liability of any nature or kind including cost and expenses for or on account of any copyrighted, patented, or unpatented invention, process, or article manufactured or used in the performance of the contract, including its use by FCSB. If Respondent uses any design, device, or materials covered by letters, patent, or copyright, it is mutually agreed and understood, without exception, that the proposed prices shall include all royalties or costs arising from the use of such design, device, or materials in any way involved in the work. In addition, FCSB shall maintain all rights to the written documentation, electronic media, and other materials provided by Respondent in response to this submittal.

18. Public Entity Crimes:

A person or affiliate who has been placed on the convicted contractor list following a conviction for a public entity crime may not submit a response to a contract to provide any goods or services to a public entity, may not submit a response to a contract with a public entity for the construction or repair of a public building or public work, may not submit responses on leases of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, Florida Statutes, for category two for a period of 36 months from the date of being placed on the convicted contractor list.

Respondent certifies, by submission of this RFP, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency.

19. Public Records Law:

IF THE CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF SECTION 119.0701, FLORIDA STATUTES, TO THE CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE SCHOOL BOARD OF FLAGLER COUNTY CUSTODIAN OF PUBLIC RECORDS AT 386.437.7526, EXT. 1105, GAVINK@FLAGLERSCHOOLS.COM, FLAGLER COUNTY PUBLIC SCHOOLS, RECORDS MANAGEMENT, 1769 E. MOODY BLVD., BLDG. 2, BUNNELL, FL 32110.

20. Reserved Rights of FCSB:

FCSB reserves the right to accept or reject any or all submittals, to waive any irregularities and technicalities and may, at its sole discretion, request a clarification or other information to evaluate any or all submittals. FCSB reserves the right to reject any and/or all items proposed or award to multiple Respondents. Prior to board approval, FCSB may cancel the RFP or portions thereof, without penalty.

FCSB reserves the right, before awarding the contract, to require Respondent to submit evidence of qualifications or any other information FCSB may deem necessary.

FCSB reserves the right to further negotiate any submittal, including price, with the highest rated Respondent. If an agreement cannot be reached with the highest rated Respondent, FCSB reserves the right to negotiate and recommend award to the next highest Respondent or subsequent Respondents until an agreement is reached.

FCSB, in its sole judgment, will award or reject any or all submittals as is in the best interest of FCSB and the decision shall be final.

21. Requirements:

FCSB has established certain requirements with respect to submittals to be submitted by prospective Respondents. The use of "shall", "must" or "will" (except to indicate simple futurity) in the RFP indicates a requirement or condition, which must be met. FCSB may, at its sole discretion, waive these requirements or conditions if the conditions are determined to be not material. A deviation from a requirement is material if the deficient response is not in substantial accord with the RFP requirements, provides an advantage to one Respondent over other Respondents, or has a potentially significant effect on the delivery, quantity, or quality of items proposed amount paid to Respondent, or for the cost to FCSB. Material deviations cannot be waived.

22. Disclosure of Response Content:

- A. All material submitted becomes the property of the School Board and may be returned only at the School Board's option. FCSB has the right to use any or all ideas presented in any reply to this RFP. Selection or rejection of any response does not affect this right.
- B. The School Board is governed by the Public Record Law, Chapter 119, Florida Statutes (F.S.). Only trade secrets as defined in Section 812.081(1)(c), Florida Statutes, or financial statements required by the School Board for road or public works projects as defined in 119.071(1)(c), Florida Statutes, (hereinafter "Confidential Materials"), may be exempt from disclosure. If a respondent submits Confidential Materials, the information must be segregated, accompanied by an executed Non-Disclosure Agreement for Confidential Materials and each pertinent page must be clearly labeled "confidential" or "trade secret." The School Board will not disclose such Confidential Materials, subject to the conditions detailed within the Agreement, which is attached to this solicitation. When such segregated and labeled materials are received with an executed Agreement, the School Board shall execute the Agreement and send the respondent a "Receipt for Trade Secret Information." RETURN THE NON-DISCLOSURE

AGREEMENT ONLY IF CONFIDENTIAL MATERIALS ARE BEING INCLUDED IN THE SUBMITTAL. THE CONFIDENTIAL MATERIALS WILL ONLY BE REVIEWED BY PURCHASING STAFF OR THE SELECTION COMMITTEE DURING THE EVALUATION PHASES.

23. Compliance with Federal Regulations:

All contracts involving Federal funds will contain certain provisions required by applicable sections of Title 34, Section 80.36(l) and Section 85.510 Code of Federal Regulations. The consultant certifies by signing the submittal that the consultant and its principals are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions and may, in certain instances, be required to provide a separate written certification to this effect. During the term of any contract with FCSB, in the event of debarment, suspension, proposed debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions, the Consultant shall immediately notify the Purchasing Representative, in writing. Respondent will also be required to provide access to records which are directly pertinent to the contract and retain all required records for seven years after final payments are made.

24. E-Verify:

In accordance with Florida Statute 448.095(2), Respondent will provide evidence (i.e.: their e-Verify number) of compliance with use of the e-Verify system to verify the work authorization status of all newly hired employees.

25. Licenses and Permits and Compliance with Laws, Ordinances and Codes

Respondent shall be solely responsible for any and all licenses and permits which may be required by any authority applicable to the provision of services outlined in this RFP and any subsequent Agreement, and all costs for such licenses and permits shall be the sole responsibility of the respondent throughout the RFP process and the term of any subsequent Agreement. Additionally, respondent shall be solely responsible for compliance with any and all laws, ordinances, or other regulations of any authority having jurisdiction over Flagler County School Board, and all costs for such compliance shall be the sole responsibility of the respondent throughout the RFP process and the term of any subsequent Agreement. This Request for Proposal is bound by the terms, conditions and requirements of Flagler County School Board Procurement and Purchasing Code, a copy of which may be requested.

26. Insurance Requirements

Prior to the signing of the contract by the Flagler County School Board, the Respondent and Subcontracts, at its sole expense, must obtain and maintain during the term(s) of the contract, and applicable to firm, its employees, agents, and subcontractors, the following insurance:

1. Workers Compensation insurance in statutory amounts and Employers Liability in an amount not less than One Million Dollars (\$1,000,000) each accident/disease. This insurance shall apply to all Consultant's employees who will be engaged in the performance of the services in this Agreement.
2. Commercial General Liability insurance, including products and completed operations and contractual liability, arising from any and all claims for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each occurrence and Two Million Dollars (\$2,000,000) aggregate.
3. Automobile Liability insurance, including all owned, non-owned, and hired vehicles used in conjunction with providing services outlined in this Agreement, for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each accident. This policy must include
4. Professional Liability insurance for any and all claims as a result of an action, lack of action, error or omission by Contractor, its employees or subcontractors in an amount not less than One Million Dollars (\$1,000,000) each claim. If such policy is written on a "claims-made" basis, coverage shall remain in effect for three (3) years after the expiration or termination of this Agreement and any of its extensions.

5. Errors and Omissions or Liability – The Design Professional shall carry a minimum of \$2,000,000.00 on projects estimated to cost not more than \$10,000,000.00 and a minimum of \$4,000,000.00 on projects estimated to cost more than \$10,000,000.00. Design Professionals selected for reuse of Flagler School Board prototype plans shall carry a minimum of \$2,000,000.00.

- A. All insurance policies shall be issued by insurers licensed to do business in the State of Florida and any insuring company is required to have a minimum rating of A- in the "Best Key Rating Guide" published by A.M. Best & Company, Inc.
- B. The School Board of Flagler County, its board members, employees, and representatives shall be listed both as an "Additional Insured" and "Certificate Holder" on the policy.
- C. The Consultant must submit to the Purchasing Department a certificate of insurance prior to the start of the contract. In no event may the insurance coverage be less than described.

27. Public Records

As a public entity, FCSB is subject to any and all public records regulations in effect in the State of Florida. As such, any and all correspondence and documentation associated with this RFP and any subsequent Agreement should be assumed to be subject to public records disclosure.

28. Sales and Use Tax Exemption

As a public entity, FCSB is exempt from payment of State of Florida Sales and Use Tax. Upon award of any Agreement, FCSB shall furnish appropriate documentation confirming such exemption.

29. Payment Terms/Invoicing

Payment terms are Net 45 Days from receipt of invoice. Itemized invoices must be provided, each bearing the Purchase Order Number. No payments are authorized in advance of receipt of service, nor for services not covered under this agreement or for services not acceptable to the FCSB.

SECTION 3 – SPECIAL TERMS AND CONDITIONS

Award

The successful Respondent shall be awarded a contract to provide services for an initial three (3) year term commencing July 1, 2022 and ending June 30, 2025 with options for two (2) one (1) year renewal periods.

E-Rate Funding

The Telecommunications Act of 1996 established a fund by which Schools and Libraries across the Country could access discounts on eligible telecommunications products and services. The program is commonly known as the E-rate Program. The eligibility for discounts on internet access, telecommunications products and services, internal connection products, services and maintenance is determined by the Federal Communications Commission (FCC). Funding is made available upon application approval by the Schools and Libraries Division (SLD) of the Universal Service Administrative Company (USAC), which was established by the Act. The amount of discount is based on the numbers of students receiving free and reduced price meals.

E-Rate Supplemental Terms and Conditions

Descriptive details regarding supplemental terms and conditions are included as Attachment M.

SECTION 4 – SCOPE OF SERVICES

The Flagler County School Board is requesting proposals under the E-Rate categories of Telecommunications Service, Voice and Internet. The District requires the services begin on July 1, 2022 and is subject to both E-Rate and District funding availability. At the present time Spectrum Enterprise offers services for Internet, SIP, and Long Distance.

The District is participating in the Federal Universal Service Discount program for schools and libraries (E-Rate), offered by the Federal Communications Commission (FCC), via the Schools and Libraries Division (SLD). The proposal and the contract negotiated implementing this proposal, are conditional and subject to full E-Rate funding by the SLD. The FCSB reserves the right to cancel or in any manner reduce the scope of this procurement in the event the SLD does not completely fund the request for funding submitted referencing this proposal.

SPIN: Each vendor providing services to FCSB as part of the E-Rate program must have a Service Provider Identification Number (SPIN). Vendor is responsible to apply to and receive from the Schools and Libraries Division a valid SPIN. Schools and Libraries Corporation can be reached online at: <http://www.USAC.org/sl> – click on “Service Provider Area”.

The funding for this contract comes from both local funds and the Federal E-Rate program. The technical and functional solution proposed must be flexible, scalable, and creatively approached by the Respondent. E-Rate funding for FCSB will continue to be a factor in determining what kind of technology and service offerings can be deployed in our public school system environment.

1. INTERNET ACCESS SERVICES

Respondent shall provide various speeds for delivery and handoff to District equipment at Flagler County Public Schools HQ. The District will make determination based on its best interest regarding the services offered at specified locations and considerations for reliability and redundancy in their bid response, including but not limited to a high-level overview of the ISP backbone network architecture, information regarding peering with other ISPs, and typical ISP Point-of-Presence (PoP) architecture.

The District will provide protected AC power with a UPS for the equipment at the rack. Respondent shall provide any termination equipment necessary to terminate the incoming cabling. The District will provide the Ethernet cabling from the provider equipment to District network and Internet termination.

Respondent shall allow the District to purchase additional bandwidth at the rates specified on the Proposal Price Sheet for the duration of the contract.

Respondent shall provide an Ethernet handoff. This circuit must be capable of transporting the full bandwidth of the Ethernet service. The Ethernet network service will be provided at a negotiated scalable bandwidth from 5 Gbps to 10 Gbps consistent carrier-quality throughput capacity (in 1 Gbps increments) with no over subscription to Tier One or Tier Two Internet Peers. The initial award handoff will be 5 Gbps. Additional pricing options are requested for future need increases (**Lot #1 on Proposal Price Sheet**). The additional pricing options as indicated on the Proposal Price Sheet are as follows:

- Option #1 = 5 Gbps
- Option #2 = 6 Gbps
- Option #3 = 7 Gbps
- Option #4 = 8 Gbps
- Option #5 = 9 Gbps
- Option #6 = 10 Gbps

IP ADDRESS BLOCK REQUIREMENTS: Respondent shall work with the District for domain registration configuration utilizing the District’s current registered block of IP addresses.

2. **TELECOMMUNICATIONS SERVICES**

One SIP Circuit – Must Maintain current (DID) Numbers as currently assigned to FCSB

Long Distance – Provide long distance services, both interstate and intrastate, for SIP services. Per minute costs are required to be completed on the Proposal Price Sheet **(Lot #2)**.

3. **MINIMUM REQUIREMENTS**

a) **Installation and Cutover Timeline**

All services being proposed must be available and operational to begin on July 1, 2022. From the contract award date through June 30, 2022, authorization will be provided to begin designing, engineering, permitting, and completing any construction necessary in preparation of commencing cutover. All services shall be available for testing no later than June 15, 2022. Site shall be cut-over with little or no interruption of service.

b) **Availability**

Respondent shall provide services that will be available a minimum of 99.99% of the time, measured monthly per connection (excluding scheduled maintenance in mutually agreed upon maintenance windows). The following schedule for credit shall apply for network unavailability:

- Under 5 minutes (99.99% availability) - No Credit
- 5 minutes up to 4 hours – 10% of Monthly Recurring Charge
- 4 hours up to 8 hours – 15% of Monthly Recurring Charge
- 8 hours up to 12 hours – 20% of Monthly Recurring Charge
- 12 hours up to 16 hours – 30% of Monthly Recurring Charge
- 16 hours up to 24 hours – 40% of Monthly Recurring Charge
- 24 hours up to 48 hours – 50% of Monthly Recurring Charge
- 48 Hours or greater – 100% of Monthly Recurring Charge

c) **Network Operations Center (NOC) Schedule**

Respondent shall provide a (24) hours per day x (7) days a week x (365) days (24/7/365) per year coverage including monitoring of termination equipment. The NOC must inform the appointed School Board representative within (15) minutes after a problem is logged as to the cause of the problem and provide an estimated time for repair. A support phone number shall also be available 24/7/365. Respondent shall have internal escalation procedures in place for NOC support in the event problem resolution is not occurring in an acceptable time frame. The Respondent must provide the District with a current, accurate contact list and escalation procedures to guarantee prompt service for the successful resolution of service issues throughout the contract period.

d) **Support**

Respondent must provide support services (24) hours per day x (7) days a week x (365) days (24/7/365) through email and a toll-free or local access phone line. The service will provide same-day responses to questions about support. The Respondent must show ability to provide 99.95% uptime backed by an appropriate Service Level Agreement (SLA) agreed upon between FCSB and Respondent as part of this RFP. Proposed services will include maintenance support capabilities 24/7/365. Respondent will be expected to provide 2nd and 3rd tier dispatch/remote Field Technical Support Services for hardware/software diagnostics, repair, and replacement.

e) **Monitoring**

Respondent shall provide customer premise monitoring, and a web-based interface to view real-time and historical utilization data.

f) **Equipment**

Respondent is responsible for providing its own routing equipment.

SECTION 5 – SUBMITTAL PREPARATION

1. Submittal Preparation

Respondents interested in being considered for these services shall submit:

- One (1) hardcopy response marked “Original”
- Five (5) hardcopies containing all original documents
- One (1) complete electronic copy in PDF format on USB drive

To facilitate analysis of its submittal, Respondent must prepare its submittal in accordance with the criteria outlined in Section 6. Submittals shall respond to each of the criteria in the same order listed and use tabs to identify each section.

FCSB emphasizes that the Respondent concentrate on accuracy, completeness, and clarity of content. The Respondent must use sections and tabs which are clearly identified and also must number and label all parts, pages, figures, and tables in its proposal.

If a Respondents submittal deviates from these instructions, such proposal may, in FCSB sole discretion, be rejected.

2. Submittal Delivery

Submittals shall be mailed or delivered in a sealed package clearly marked on the outside with the Respondent Name, Solicitation Name, Solicitation Number and Due Date. Respondents are encouraged to utilize the template as provided below.

Delivery of a package to any location other than the Flagler County Schools Purchasing Department does not constitute official receipt. Any package delivered after the advertised deadline will not be considered.

Note: Please ensure that if a third party carrier (Federal Express, Airborne, UPS, USPS, etc.) is used, that they are properly instructed to deliver your proposal only to the Flagler County Schools Purchasing Department address as identified.

All submittal documents and electronic media must be in a sealed package, boldly and clearly marked as follows:

DO NOT OPEN - SEALED SUBMITTAL - DO NOT OPEN	
Company Name:	_____
RFP Number:	22-10P
RFP Title:	Telecommunications Service Voice/Internet
Submittals Due:	February 14, 2022 – 12:00pm
DELIVERY TO:	Flagler County Schools Purchasing Department 1769 E. Moody Blvd, Bldg 2 Second Floor - Finance Bunnell, FL 32110

3. Submittal and Organization

Submittals must provide the required information in the following order and format as listed below. Failure to provide the required information may affect the evaluation of the submittal and shall be grounds for disqualification.

Copies of the submittal signed by an authorized representative of Respondent, including name, title, address, and telephone number of one individual who is Respondent's designated representative.

Table of Contents

Table of Contents is required to properly organize your proposal and to be used for a quick reference of sections of the submittal for the Selection Committee to review.

Tab 1 – Letter of Intent

This letter will summarize in a brief concise manner, the firm understanding of the Scope of Work and makes a positive commitment to perform the work/services in a timely manner. The letter must be signed by an official authorized representative to make such commitments and enter into contract with the District. The letter must indicate the official's title or authority.

Tab 2 – Company Information/Qualifications

Respondent shall describe the history, structure, and authoritative direction of control of the organization with particular emphasis on its experience in providing Telecommunications Service Voice/Internet.

Respondent must demonstrate a record of company stability for the last five (5) years and provide information supporting evidence as follows:

- Number of years in business.
- Location and telephone number of Respondent's offices.
- Explanation of any name changes, changes in ownership, reorganizations, etc.

Respondent must list any regulatory or license agency sanctions. Respondent must keep current all licenses and permits, whether municipal, county, state, or federal, required for the performance of its obligations and functions hereunder, and shall pay promptly when due all such fees. Respondents must provide documentation of applicable license, certification, and/or commercial experience involving the services described herein. FLAGLER COUNTY SCHOOLS reserves the right to request documentation at any time during the contract period.

Litigation – Disclose any material changes in the business operations of the Company, including without limitation any pending bankruptcy proceedings, bankruptcies, receiverships, mergers, acquisitions, stock acquisitions or spin-offs which have occurred within the last three (3) years and any material pending or threatened litigation. If appropriate, discuss the impact of these changes on the Company's financial or managerial ability to perform the noted tasks under this Contract. Provide the name, title, address and phone number of the financial officer of the Company responsible for providing this information.

Tab 3 – Technical Approach and Proposed Solution

Respondent shall provide a detailed description of their proposed technical approach and solution in accordance with the requirements of this RFP.

Tab 4 – Project Plan, Implementation Schedule and Cutover

Respondent shall provide a detailed project management plan including the District's assistance to be provided. An implementation schedule with beginning and ending dates, deliverables, and milestones as well as a detailed preliminary cutover plan must be included.

Tab 5 – Service and Maintenance Plan

Respondent shall describe their service and maintenance plan that defines how the Respondent will provide warranty, service, and maintenance in accordance with the requirements of this RFP.

Tab 6 – Project Team, Qualifications and Experience

Respondent shall explain the qualifications of the staff assigned to this project and at a minimum, the proposal shall:

1. Designate a Project Manager
2. Include a listing of proposed staff, functional disciplines, and responsibilities of project team members
3. Include resumes of the proposed skilled technicians, highlighting all applicable certifications

Tab 7 – References

Five (5) total references shall be provided utilizing Attachment L, References. Of the required references, three (3) listed should be related to K-12 Education. Flagler County Schools must not be referenced. The District may solicit References as needed to confirm credentials.

Tab 8 – Proposal Price Sheet

All costs shall be provided utilizing Attachment N, Proposal Price Sheet.

Tab 9 – Additional Information

Any additional information or data which Respondent deems essential to the proposal and for consideration should be included. Additional information presented for consideration should include additional costs to the District, if applicable. If there is no additional information to present, state in this section: "There is no additional information that Respondent wishes to present."

Tab 10 – Required Forms

Attachment A – Submittal Acknowledgement
Attachment B – Vendor Information
Attachment C – Acknowledgement of Addenda
Attachment D – Respondent's Statement of Qualification
Attachment E – Conflict of Interest Disclosure
Attachment F – Certification Regarding Debarment, Suspension, and Other Responsibility Matters
Attachment G – Drug Free Work Place Certification
Attachment I – Sworn Statement of Florida Statute **Section 287.133(3) Public Entity Crime**
Attachment J – Sworn Statement of Florida Statute **Section 1012.465 The Jessica Lunsford Act**
Attachment K – Application for Certification
Attachment L – References
Attachment M – E-Rate Supplemental Terms & Conditions
Attachment N – Proposal Price Sheet

*Attachment L and N are to be submitted in the specified tabs as identified above.

SECTION 6 – EVALUATION OF SUBMITTALS

1. Evaluation of Submittals

Submittals will be reviewed and evaluated by the Selection Committee as described herein.

2. Selection Committee

The Selection Committee will convene, review, evaluate, and rank all valid responses submitted based on the evaluation criteria.

The Selection Committee reserves the right to interview any, all, or none of the Respondents that responded to the RFP and to require formal presentations who will administer and be assigned to work on behalf of the contract before recommendation of award.

The Selection Committee reserves the right to conduct site visits of Respondent's facilities and/or of a current project it is managing.

3. Evaluation Process

FCSB will not be under any requirement to complete the evaluation by any specific date and reserves the right to suspend or postpone the evaluation process should the need arise. However, it is anticipated that the review/evaluation process will be completed in a timely manner per the schedule provided. Purchasing staff will participate in an advisory capacity only.

4. Evaluation Criteria

Submittals that meet the requirements contained in this RFP will be evaluated based on the following criteria.

Criteria	Value
Pricing	40
Service and Maintenance Plan	10
Technical Approach and Proposed Solution	20
Project Plan, Implementation Schedule and Cutover	20
Project Team, Qualifications and Experience	10
Total	100

5. Right to Negotiate

FCSB reserves the right to negotiate price and contract terms and conditions with the most qualified Respondent(s) to provide the requested service. If a mutually beneficial agreement with the highest ranked Respondent is not reached, the School Board reserves the right to enter into contract negotiations with the next highest ranked Respondent and continue this process until agreement is reached. Respondents are cautioned to provide their best offer initially.

6. Award and Contract

Awards shall be made to the most responsive and responsible Respondents whose submittals are determined, in writing, to be the most advantageous, bringing "best value" to meet the criteria of FCSB. Following the selection and upon final negotiation of the contract terms and conditions with the recommended Respondents, recommendation for contract awards, as required, will be submitted to the Superintendent. The Superintendent will recommend to the School Board the awards or rejection of any and/or all submittal(s).



Attachment A

Submittal Acknowledgement

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

The Respondent hereby certifies by submission and signature of this submittal that Respondent complies fully with this RFP. In addition, the representative below is duly authorized to sign this submittal on behalf of Respondent, company, or corporation and fully understands that by virtue of signing and returning this Submittal Acknowledgement represents complete and unconditional acceptance of the requirements, terms and conditions of this RFP and all attachments, exhibits and any addenda released hereto.

Authorized Signature	Name & Title (printed)
Respondent Name	Federal I.D. #
Street Address	
City	State Zip
Telephone	E-Mail Address
Date of Submittal	Contact Person, Number

This form must be completed and returned with your submittal. All submittals must be signed by an officer or employee having authority to legally bind Respondent(s).



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Attachment B
Vendor Information

Name of Entity, Individual(s), Partners or Corporation:

Taxpayer Identification Number (SSN/EIN): _____

Business/Purchase Order Address:

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Remittance Address (if different from above):

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Payment Method: ☐ CHECK
 ☐ ACH (If ACH, Flagler Schools will email an enrollment form)

Current W-9 Attached? ☐ YES



Attachment C

Acknowledgement of Addenda

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

Acknowledgment is hereby made of receipt of the following Addenda issued during the solicitation period:

Addendum No.	Dated

Respondent

Authorized Signature



Attachment D

Respondent's Statement of Qualification

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

Please provide written responses to the following questions. If the answer to any of the questions is "Yes", Respondent shall describe fully the circumstances, reasons therefore, the current status, and ultimate disposition of each matter that is the subject of this inquiry.

1. Has Respondent been declared in default of any contract? ☐ Yes ☐ No
2. Has Respondent forfeited payment of performance bond issued by a surety company on any contract? ☐ Yes ☐ No
3. Has an uncompleted contract been assigned by Respondent's surety company on any payment of performance bond issued to Respondent arising from its failure to fully discharge all contractual obligations thereunder? ☐ Yes ☐ No
4. Within the past three (3) years, has Respondent filed for reorganization, protection from creditors, or dissolution under the bankruptcy statutes? ☐ Yes ☐ No
5. Is Respondent now the subject of any litigation in which an adverse decision might result in a material change in Respondent's financial position or future viability? ☐ Yes ☐ No
6. Is Respondent currently involved in any state of a fact-finding, negotiations, or resistance to a merger, friendly acquisition, or hostile take-over, either as a target or as a pursuer? ☐ Yes ☐ No
7. License Sanctions: List any regulatory or license agency sanctions. The School Board may perform a background check on Respondent with all state and regulatory agencies.
8. Respondent must provide the name and address of all persons or entities serving or intending to serve as principals in Respondent's Respondent.

Respondent Name

Authorized Signature



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Attachment E

Conflict of Interest Disclosure

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

Conflict of Interest: Respondents shall be familiar and comply with all applicable conflict of interest legal requirements including Florida's Code of Ethics for Public Officers, Chapter 112, Part III, Florida Statutes. Respondents must complete and submit this Conflict of Interest Disclosure. The form must be signed by an officer or by an authorized individual and notarized by a notary public. The Respondent may disclose any additional information regarding the existence or appearance of a conflict of interest under state or local laws. If the Respondent or its authorized agent omits, misrepresents or falsifies material information, the selection of the Respondent and any executed contract shall be void.

In accordance with the Conflict of Interest provision, the Respondent certifies the following:

- a. _____ There are no identified conflicts of interest.
- b. _____ The following potential conflicts of interest have been identified:

Name of School Board Affiliate

Relationship to Business

Business Ownership Percentage

Respondent Name

Authorized Printed Name

Authorized Signature

Title of Authorized Official

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this _____ day of _____ 20____ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Certification Regarding Debarment, Suspension, and Other Responsibility Matters - Primary Covered Transactions

This certification is required by the regulations implementing Executive Order 12549, Debarment and Suspension, 7 CFR Part 3017, Section 3017.510, Participants' responsibilities. The regulations were published as Part IV of the January 30, 1989 Federal Register (pages 4722-4733). Copies of the regulations may be obtained by contacting the Department of Agriculture agency offering the proposed covered transaction.

BEFORE COMPLETING CERTIFICATION, READ INSTRUCTIONS BELOW

1. The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:
(a) are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency; (b) have not within a three-year period preceding this submittal been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or

destruction of records, making false statements, or receiving stolen property; (c) are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and (d) have not within a three-year period preceding this application/submittal had one or more public transactions (Federal, State or local) terminated for cause or default. Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participants shall attach an explanation to this submittal.

Respondent Name

PR/Award Number or Project Name

Printed Name of Authorized Representative

Authorized Signature _____ Date _____

Instructions for Certification

1. By signing and submitting this form, the prospective primary participant is providing the certification set out above in accordance with these instructions.
2. The inability of a person to provide the certification required below will not necessarily result in denial of participation in this covered transaction. The prospective participant shall submit an explanation of why it cannot provide the certification set out on this form. The certification or explanation will be considered in connection with the department or agency's determination whether to enter into this transaction. However, failure of the prospective primary participant to furnish a certification or an explanation shall disqualify such person from participation in this transaction.
3. The certification in this clause is a material representation of fact upon which reliance was placed when the department or agency determined to enter

into this transaction. If it is later determined that the prospective primary participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.

4. The prospective primary participant shall provide immediate written notice to the department or agency to which this submittal is submitted if at any time the prospective primary participant learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
5. The terms "covered transaction," "debarred," "suspended," "ineligible," "lower tier covered transaction," "participant," "person," "primary covered transaction," "principal," "submittal," and "voluntarily excluded," as used in this clause, have the meanings set out in the Definitions and Coverage sections of the rules implementing Executive Order 12549. You may contact the department or agency to which this submittal is being submitted for assistance in obtaining a copy of those regulations.
6. The prospective primary participant agrees by submitting this form that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency entering into this transaction.
7. The prospective primary participant further agrees by submitting this form that it will include the clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion - Lower Tier Covered Transactions," provided by the department or agency entering into this covered transaction, without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
8. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that is not debarred, suspended, ineligible or voluntarily excluded from the covered transaction; unless it knows that, the certification is erroneous. A participant may decide the method and

frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the Non-Purchasing List.

9. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
10. Except for transactions authorized under paragraph 6 of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.



Attachment G

Drug-Free Workplace Certification

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

Identical Tie Bids – In accordance with Section 287.087, Florida Statutes, preference shall be given to businesses with drug-free workplace programs. Whenever two or more bids, which are equal with respect to price, quality and service, are received by the State or by any political subdivision for the Purchasing of commodities or contractual services, a bid received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing tie bids will be followed if none of the tied contractors has a drug-free workplace program. In order to have a drug-free workplace program, a business shall:

1. Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the workplace and specifying the actions that will be taken against employees for violations of such prohibition.
2. Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation and employee assistance programs, the penalties that may be imposed upon employees for drug abuse violations.
3. Give each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notify the employees that, as a condition of working on the commodities or contractual services that are under bid, the employee will abide by the terms of the statement and will notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of Chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five (5) days after such conviction.
5. Impose a sanction on, or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available who is so convicted.
6. Make a good faith effort to continue to maintain a drug-free workplace through implementation of this section.

As the person authorized to sign the statement, I certify that this respondent complies fully with the above requirements.

Respondent Name

Authorized Signature



Attachment H
Non-Disclosure Agreement
For Confidential Materials

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

RETURN THIS FORM ONLY IF CONFIDENTIAL MATERIALS ARE BEING INCLUDED IN THE SUBMITTAL. PLEASE READ THE SECTION IN THE BID DOCUMENT TO DETERMINE IF THIS APPLIES.

Respondent: _____
Address: _____

This Agreement is entered into as of the date of the last signature set forth below between the School Board of Flagler County, a political subdivision of the State of Florida (the "School Board"), and the above named Respondent (hereinafter the "Respondent"). The School Board of Flagler County and the Respondent are collectively referred to as the "Parties" and may be referred to individually as a Party.

RECITALS

WHEREAS, the Respondent possesses certain confidential trade secret materials that it wishes to disclose to the School Board of Flagler County for the purpose of responding to a solicitation or otherwise conducting business with the School Board; and

WHEREAS, the School Board desires to review such materials in order to evaluate the School Board's interest in negotiating and concluding an agreement for the purchase of certain products and services, or otherwise conducting business with the Respondent.

NOW THEREFORE, in consideration of the mutual promises and premises contained herein, the receipt and sufficiency of which are hereby acknowledged, the School Board and the Respondent agree as follows:

1. Confidential Materials. The Respondent warrants and represents to the School Board that the materials described in the attached (the "Confidential Materials") constitute trade secrets as defined by Section 812.081(1)(c), Florida Statutes, or financial statements required by the School Board for projects as defined in 119.071(1)(c), Florida Statutes. Subject to the terms and conditions of this Agreement, the School Board agrees not to disclose such Confidential Materials to third parties.
2. Additional Materials. During the course of the review or the business relationship with the School Board, the Respondent may disclose additional confidential or trade secret information to the School Board in which case the restrictions and obligations on the use and disclosure of the Confidential Materials imposed by this Agreement shall also apply to such additional information to the extent permitted by Florida law. Any such additional confidential or trade secret information shall be duly marked and stamped "confidential" or "trade secret" prior to delivery to the School Board, and shall be subject to this Agreement and Section 812.081(2), Florida Statutes, only if written receipt is provided by the School Board acknowledging receipt of such materials.

3. Exclusions. For purposes of this Agreement, the term “Confidential Materials” does not include the following:
 - (a) Information already known or independently developed by the School Board;
 - (b) Information in the public domain through no wrongful act of the School Board;
 - (c) Information received by the School Board from a third party who was legally free to disclose it;
 - (d) Information disclosed by the Respondent to a third party without restriction on disclosure;
 - (e) Information disclosed by requirement of law or judicial order, including without limitation Chapter 119 Florida Statutes; or
 - (f) Information that is disclosed with the prior written consent of the Respondent, but only to the extent permitted by such consent.
4. Non-Disclosure by Respondent. In the event that the School Board discloses confidential or trade secret information to Respondent, the Respondent agrees to not disclose such information to any third party or copy such information or use it for any purpose not explicitly set forth herein without the School Board’s prior written consent. Further, upon conclusion of discussions or business transactions between the School Board and the Respondent, or at any time upon request of the School Board, Respondent agrees to return such information (including any copies) to the School Board.
5. Duty of Care. Each Party agrees to treat the other Party’s confidential or trade secret information with the same degree of care, but not less than reasonable care, as the receiving Party normally takes to preserve and protect its own similar confidential information and to inform its employees of the confidential nature of the disclosing Party’s information and of the requirement of nondisclosure. In the event either Party has actual knowledge of a breach of the nondisclosure requirements set forth in this Agreement, the Party acquiring such knowledge shall promptly inform the other Party and assist that Party in curing the disclosure, where possible, and preventing future disclosures.
6. Limitations of Florida Law. Respondent understands and agrees that its assertion that any item is confidential or a trade secret does not, in and of itself, render such material exempt from the Florida Public Records Law, Chapter 119 of the Florida Statutes, and that the School Board’s ability to prevent disclosure of confidential and trade secret information may be subject to determination by a Florida court that such materials qualify for trade secret protection under Florida law. In the event a third party makes a public records request for the Confidential Materials or other materials deemed by Respondent to be confidential or a trade secret, the School Board may submit the materials to the court for inspection in camera as set forth in Section 119.07(1)(g) Florida Statutes. Respondent further understands that the School Board may be required to disclose such information if directed by a court of competent jurisdiction.
7. Indemnification by Respondent. In the event of any litigation instituted by a third party to compel the School Board to disclose such materials, Respondent shall, at its sole cost and expense, provide assistance to the School Board in defending the denial of the records request, and shall hold the School Board harmless from any claim for statutory costs and attorney’s fees arising from the School Board’s refusal to disclose such materials.
8. No Additional Obligations. This Agreement shall not be construed in any manner to be an obligation for either Party to enter into any subsequent contract or agreement.
9. Sovereign Immunity. Nothing in this Agreement shall be deemed as a waiver of immunity or limits of liability of the School Board beyond any statutory limited waiver of immunity or limits of liability, which has been or which may be adopted by the Florida Legislature, regardless of the nature of any claim which may arise, including but not limited to a claim sounding in tort, equity or contract. In no event shall the School Board be liable for any claim or claims for breach of contract, including without limitation the wrongful disclosure of confidential or trade secret information for an amount which exceeds, individually and collectively, the then current statutory limits of liability for tort claims. Nothing in this Agreement shall inure to the benefit of any third party for the purpose of allowing any claim against the School Board, which would otherwise be barred under the Doctrine of Sovereign Immunity or by operation of law.
10. Notice. Whenever either Party desires to give notice unto the other, it must be given by written notice, sent by

registered United States mail, with return receipt requested, addressed to the party for whom it is intended, at the place last specified, and the place for giving of notice in compliance with the provisions of this paragraph. For the present, the Respondent designates the address set forth above as its place for receiving notice, and the School Board designates the following address for such notice:

The School Board of Flagler County, Florida
Coordinator of Purchasing
1769 E. Moody Blvd., Bldg. #2
Bunnell, FL 32110

11. Governing Law. This Agreement shall be governed by the laws of the State of Florida, and venue for any action arising out of or relating to the subject matter of this Agreement shall be exclusively in Flagler County, Florida, or the Federal School Board Court for the Middle School Board of Florida, Jacksonville Division.
12. Respondent and the School Board hereby expressly waive any rights either may have to a trial by jury of any civil litigation related to this Agreement for any litigation related to or arising from this solicitation and resulting agreement.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized officers the day and year as set forth below.

The School Board of Flagler County, Florida

BY: _____
NAME: _____
TITLE: Coordinator of Purchasing
DATE: _____

Respondent

BY: _____
NAME: _____
TITLE: _____
DATE: _____

ATTEST:

BY: _____
NAME: _____
TITLE: _____
DATE: _____



Attachment I

Sworn Statement Pursuant to Section 287.133(3), Florida Statutes Public Entity Crime

We certify that we have read and understand Florida Statutes, section 287.133 Public Entity crime; denial or revocation of the right to transact business with public entities.

We understand a public entity crime, as defined in Florida Statutes, section 287.133, is a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, submittal, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.

We understand that a person or affiliate who has been placed on the convicted bidder list following a conviction for a public entity crime may not submit a bid, bid, or reply on a contract to provide any goods or services to a public entity; may not submit a bid, submittal, or reply on a contract with a public entity for the construction or repair of a public building or public work; may not submit bids, submittals, or replies on leases of real property to a public entity; may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity; and may not transact business with any public entity in excess of the threshold amount provided in s. 287.017 for CATEGORY TWO for a period of 36 months following the date of being placed on the convicted bidder list.

Please mark an (X) next to the statement which is applicable to your entity.

_____ Neither the entity submitting this sworn statement, nor any of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in either management of the entity, nor any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989. However, there has been a subsequent proceeding before a Hearing Officer of the State of Florida, Division of Administrative Hearings and the Final Order entered by the Hearing Officer determined that it was not in the public interest to place the entity submitting this sworn statement on the convicted bidder list (a copy of the final order is required; please attach).

Respondent Name

Authorized Signature

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Attachment J

Sworn Statement Pursuant to Section 1012.465, Florida Statutes; The Jessica Lunsford Act

1. We understand that during the 2005 Legislative Session, House Bill 1877, The Jessica Lunsford Act (hereinafter "The Act" or "Act") was passed and approved by Governor Bush on May 2, 2005, with an effective date of September 1, 2005.
2. We understand that the Act sets forth the background screening requirements of section 1012.465, Florida Statutes for all non-instructional school employees and **contractual personnel** by requiring all non-instructional School Board employees and contractual personnel who are permitted access on school grounds when students are present, who have direct contact with students or who have access to or control of school funds to meet level 2 screening requirements, as described in s. 1012.32. Further, we understand that the Act defines **contractual personnel** to include any bidder, individual, or entity under contract with a school or a school board.
3. We understand that all subcontractors assigned by the contractor must also comply with background screening requirements of s. 1012.32.
4. We further understand that every 5 years following entry into a contract, all contracted personnel or individuals assigned by the contractor who meet the conditions in section 2., above, must meet level 2 rescreening requirements as described in s. 1012.32.
5. We understand that level 2 background screening requirements, as defined in section 1012.32, Florida Statutes requires that fingerprints of all contractual personnel must be obtained and submitted to the Florida Department of Law Enforcement for state processing and to the Federal Bureau of Investigation for federal processing.
6. We understand that any costs associated with the required background screenings will be borne by the contractor.
7. We understand that if a (potential) contractor does not meet the level 2 requirements, the individual shall not be permitted to contract with the School Board and shall be immediately suspended from working in that capacity and shall remain suspended until final resolution of any appeals.
8. We understand that failure to comply with level 2 background screenings as required by section 1012.465, Florida Statutes, will disqualify the contractor from conducting business with the School Board.

Respondent Name

Authorized Signature



Attachment K

Application for Certification

The Application for Certification is hereby submitted to be considered to provide services as requested by Flagler County School Board. As such, I hereby authorize Flagler County School Board to obtain the information necessary to verify the information provided in the RFP submittal and concerning my professional standing and reputation.

As evidenced by my signature, I certify that this offer is made without prior understanding, agreement, or connection with any corporation, Respondent, business or person submitting an offer for the same materials, supplies, equipment, or services, and is in all respects fair and without collusion or fraud. I further agree to abide by all conditions of this invitation, school board rules, policies and procedures and certify that I am authorized to sign this response. Upon approval by the School Board, the information contained herein shall constitute the contract between the School Board and contractor.

I authorize Flagler County School Board and its authorized personnel to disclose the information provided in our application to designated personnel of other federal, state, or municipalities in the State of Florida. With the proper consent, purchases may be made under this RFP by other governmental agencies within the State of Florida. Such purchases shall be governed by the same terms and conditions as stated herein.

I further declare that we have examined the requirements and specifications for the materials to be furnished and have read all provisions prior to the submission of the response. I acknowledge that I have read, understand and agree to the terms and conditions stated in this RFP.

If my submittal is accepted, I agree to contract with the Flagler County School Board to deliver the services requested.

Respondent Name

Authorized Signature



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Attachment L

Respondent's Reference Form

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

Reference # 1

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference #2

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference # 3

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference # 4

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference # 5

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____



Attachment M

E-Rate Supplemental Terms and Conditions

Signed copy to be returned with bid response.

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

The Telecommunications Act of 1996 established a fund by which Schools and Libraries across the Country could access discounts on eligible telecommunications products and services. The program is commonly known as the E-rate Program. The eligibility for discounts on internet access, telecommunications products and services, internal connection products, services and maintenance is determined by the Federal Communications Commission (FCC). Funding is made available upon application approval by the Schools and Libraries Division (SLD) of the Universal Service Administrative Company (USAC), which was established by the Act. The amount of discount is based on the numbers of students receiving free and reduced price meals.

1) E-RATE CONTINGENCY

The project herein may be contingent upon the approval of funding from the Universal Service Fund's Schools and Libraries Program, otherwise known as E-rate. Even after award of contract(s) and/or E-rate funding approval is obtained, the District may or may not proceed with the project, in whole or in part. Execution of the project, in whole or in part, is solely at the discretion of the District.

2) SERVICE PROVIDER REQUIREMENTS

The District expects Service Providers to make themselves thoroughly familiar with any rules or regulations regarding the E-rate program.

- a. Service Providers are required to be in full compliance with all current requirements and future requirements issued by the SLD throughout the contractual period of any contract entered into as a result of this RFP.
- b. Service Providers are responsible for providing a valid SPIN (Service Provider Identification Number). More information about obtaining a SPIN may be found at this website: <https://www.usac.org/e-rate/service-providers/step-1-obtain-a-spin/>
- c. Service Providers are responsible for providing a valid Federal Communications Commission (FCC) Registration Number (FRN) at the time the proposal is submitted. More information about obtaining an FRN may be found at this website: <https://apps.fcc.gov/coresWeb/publicHome.do>
- d. Service Providers are responsible for providing evidence of FCC Green Light Status at the time the proposal is submitted. Any Respondent found to be in Red Light Status must provide an explanation of the steps it is undertaking to be removed to Red Light Status and the expected timeframe for resolution. A Service Provider's sustained Red Light Status may be grounds for contract termination as it could prohibit the Service Provider from providing E-rate discounts in a timely manner which would cause harm to the Applicant. More information about FCC Red and Green Light Status may be found at this website: http://www.fcc.gov/debt_collection/welcome.html

- e. Products and services must be delivered before billing can commence. At no time may the Service Provider invoice before July 1, 2022.
- f. Prices must be held firm for the duration of the associated E-rate Funding Year(s) or until all work associated with the project is complete (including any contract and USAC approved extensions).
- g. Goods and services provided shall be clearly designated as "E-rate Eligible". Non-eligible goods and services shall be clearly called out as 100% non-eligible or shall be "cost allocated" to show the percentage of eligible costs per SLD guidelines.
- h. Within one (1) week of award, the awarded Service Provider must provide the District a bill of materials using a completed USAC "Item 21 Template". Subsequent schedules of values and invoices for each site must match Item 21 Attachment or subsequent service substitutions. A summary sheet must also be provided to provide the cumulative amount for all sites.**
- i. In the event of questions during an E-rate pre-commitment review, post-commitment review and/or audit inquiry, the awarded Service Provider is expected to reply within 3 days to questions associated with its proposal.
- j. The awarded Service Provider is required to send copies of all forms and invoices to the District prior to invoicing USAC for pre-approval. Failure to comply with this requirement may result in the District placing the vendor on an "Invoice Check" with the USAC <https://www.usac.org/e-rate/applicant-process/invoicing/invoice-check/>
- k. Services providers must comply with the FCC rules for Lowest Corresponding Price ("LCP"). Further details on LCP may be obtained at USAC's website: <https://www.usac.org/e-rate/service-providers/step-2-responding-to-bids/lowest-corresponding-price/>

3) SERVICE PROVIDER ACKNOWLEDGEMENTS

- a. The Service Provider acknowledges that no change in the products and/or services specified in this document will be allowed without prior written approval from the district and a USAC service substitution approval with the exception of a Global Service Substitutions.
- b. The Service Provider acknowledges that all pricing and technology infrastructure information in its bid shall be considered as public and non-confidential pursuant to §54.504 (2)(i)(ii).
- c. The Service Provider acknowledges that its offer is considered to be the lowest corresponding price pursuant to § 54.511(b). Further details on LCP may be obtained at USAC's website: <https://www.usac.org/e-rate/service-providers/step-2-responding-to-bids/lowest-corresponding-price/>. Should it not be the lowest corresponding price, the service provider must disclose the conditions leading to the applicant being charged in excess of lowest corresponding price.
- d. Respondents are required to comply with the FCC's Lowest Corresponding Price ("LCP") Requirement for all equipment and Services. Respondent acknowledges that Respondent is solely responsible to comply with LCP requirements. To the extent that USAC finds an LCP violation and reduces the E-rate Funding, Respondent agrees that it will not hold the DISTRICT liable for any shortfall in E-rate funding and will be responsible for any ensuing appeals, COMADS and/or RIDFS.
- e. The Service Provider attests that its offer does not violate the FCC's Supply Chain certifications included in the FCC Form 473. Supply Chain requirements and certifications can be viewed at USAC's Website: <https://www.usac.org/about/reports-orders/supply-chain/>.

- f. This offer is in full compliance with USAC's Free Services Advisory <https://www.usac.org/e-rate/applicant-process/competitive-bidding/free-services-advisory/>. There are no free services offered that would predicate an artificial discount and preclude the applicant from paying its proportionate non-discounted share of costs. The service provider agrees to provide substantiating documentation to support this assertion should the applicant, USAC, or the FCC requests it.

4) STARTING SERVICES/ADVANCE INSTALLATION – Category 1 Services

The annual E-rate Funding Year begins on July 1 and expires on June 30 of each calendar year. Regardless of the contract "effective date", E-rate eligible goods and/or services requested in this RFP shall be delivered no earlier than the start of the 2022 funding year (July 1, 2022). If Category 1 services (Telecommunication Services and Internet access) will begin on or shortly after July 1 of a funding year, the Service Provider, in some cases, may need to undertake some construction and installation work prior to the beginning of that funding year. Within the limitations indicated below, the infrastructure costs of a service provider can be deemed to be delivered at the same time that the associated Category 1 services begin. That is, if services begin on July 1, then the delivery of Service Provider infrastructure necessary for those services can be considered as also delivered on July 1. However, NO INVOICING can take place prior to July 1 of the associated Funding Year.

EARLY FUNDING CONDITIONS

Category 1

There are four conditions that must be met in order for USAC to provide support in a funding year for Category 1 infrastructure costs incurred prior to that funding year.

- *Initiation of installation cannot take place before selection of the service provider pursuant to a posted Form 470 and in any event no earlier than six months prior to July 1 of the funding year.*
- *The Category 1 service must depend on the installation of the infrastructure.*
- *The underlying Category 1 service cannot have a service start date prior to July 1 of the funding year.*
- *No invoices can be submitted to USAC for reimbursement prior to July 1 of the funding year.*

For more information, please refer to the FCC Order involving the Nassau County Board of Cooperative Educational Services (DA 02-3365) The complete text can be found at the following URL: <https://www.usac.org/e-rate/applicant-process/starting-services/advance-installation/>

Category 2

There is one condition that allows USAC to provide support in a funding year for Category 2 installation costs incurred prior to that funding year.

- *We also amend our rules for category two non-recurring services to permit applicants to seek support for category two eligible services purchased on or after April 1, three months prior to the start of funding year on July 1. This will provide schools with the flexibility to purchase equipment in preparation for the summer recess and provide the maximum amount of time during the summer to install these critical networks.*

For more information, please refer to the FCC Report and Order and Further Notice of Proposed Rulemaking (FCC 14-99) However, NO INVOICING can take place prior to July 1 of the funding year.

5) INVOICING

- a. The Service Provider agrees to bill and receive a portion of the payment for the provisions of goods and services described herein directly from USAC via the Form 474 Service Provider Invoice (SPI). The District will only be responsible for paying its non-discounted share of costs and does not intend to use the BEAR process (Form 472). The maximum percentage the District will be liable for is the pre-discount amount minus the funded amount as shown on the FCC Form 471 Block 5 and any identified ineligible costs. Upon the successful receipt or posting of

a Funding Commitment Decision Letter from the SLD and submission, certification and USAC approval of Form 486, the District shall pay only the discounted amount beginning with the billing cycle immediately following said approval. Alternatively, should the District decide that it is in the best interest of the District to file a Form 472, the District will inform the Service Provider of its intent.

- b. All Service Provider invoicing to USAC must be completed within 120 days from the last day of service. Should the Service Provider fail to invoice USAC in a timely manner, the District will only be responsible for paying its non-discounted share.

6) FCC/SLD AUDITABILITY

The E-rate program requires that all records be retained for at least ten (10) years from the last date of service provided on a particular funding request. Respondent hereby agrees to retain all books, records, and other documents relative to any Agreement resulting from this RFP for ten (10) years after final payment. The District, its authorized agents, and/or auditors reserves the right to perform or have performed an audit of the records of the Respondent and therefore shall have full access to and the right to examine any of said materials within a reasonable period of time during said period.

7) PROCUREMENT OF ADDITIONAL GOODS AND/OR SERVICES/COTERMINOUS EXPIRATION

During the term of any Agreement resulting from this RFP, the District may elect to procure additional or like goods and/or services offered by the Respondent. Such services shall be negotiated and obtained via an official amendment to this Agreement and approval by the District's Governing Board. All terms, conditions, warranties, obligations, maintenance and support of said goods or services shall have a coterminous expiration date with the original date of this Agreement. The District shall not enter into a separate Agreement for said goods or services. Respondents must state in their proposal that they acknowledge, accept and are in agreement with coterminous expiration conditions.

I, the undersigned, as an authorized agent of _____ (Service Provider Name), hereby certify that I have read the E-rate Supplemental Terms and Conditions, am fully compliant and intend to cooperate with the E-rate process as outlined above.

Authorized Signature: _____ **Title:** _____

Email: _____ **Phone No:** _____

Service Provider Name: _____



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Attachment N
Proposal Price Sheet

RFP No: 22-10P
RFP Title: Telecommunications Service Voice/Internet

LOT# 1 - INTERNET

LOCATION	5GBPS	6GBPS	7GBPS	8GBPS	9GBPS	10GBPS	Installation	Other
Flagler County Schools - HQ								

LOT# 2 - SIP

LOCATION	Quantity By Site	Unit Price	Long Distance Minutes	Installation	Other
Flagler County Schools - HQ					

Respondent Name

Authorized Signature

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by
_____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____